LOUISIANA PUBLIC SERVICE COMMISSION

ORDER NUMBER U-37483

BEAUREGARD ELECTRIC COOPERATIVE, INC., EX PARTE.

Docket No. U-37483, In re: Application for an increase in rates, approval of Formula Rate Plan, including modifications to standard Terms and Conditions, and for Interim Rate Relief.(Notice of intervention or protest shall be within 15-days of the date of this bulletin.)

(Decided at the April 16, 2025 Business and Executive Session.)

ORDER

On January 14, 2025, Beauregard Electric Cooperative, Inc., ("BECi" or "Company") filed an Application for an increase in rates, approval of Formula Rate Plan, including modifications to standard Terms and Conditions, and for Interim Rate Relief. ("Application"). Notice of the Application was published in the Louisiana Public Service Commission ("LPSC" or "Commission") Official Bulletin No. 1341 dated January 17, 2025.

BECi is requesting is requesting the authority to implement an interim base rate increase in the amount of 40% of the overall requested base rate increase effective June 1, 2025. BECi has indicated in their application that should this interim rate increase be approved, the monthly bill for a residential customer using 1250 kWh would increase $3.42 (2.46%).

BECi has also requested pursuant to Section 501 in the LPSC General Order dated July 1, 2019[1], to implement changes to its Tariff related to High Load Factor ("HLF") and HLF Air Separator Plant ("ASP"). BECi requests this consideration to coincide with the Company's transition from Louisiana Generating, LLC., to 1803 Electric Cooperative, Inc., for power supply and delivery. At this time, Staff has not had an opportunity to fully review the Application.

Jurisdiction and Applicable law

The Commission exercises jurisdiction in this proceeding pursuant to Article IV, Section 21(B) of the Louisiana Constitution.

La. Const. Art. IV, Sec. 21 provides in pertinent part:

> (B) The commission shall regulate all common carriers and public utilities and have such other regulatory authority as provided by law. It shall adopt and enforce reasonable rules, regulations, and procedures necessary for the discharge of its duties, and shall have other powers and perform other duties as provided by law.

[1] LPSC Order No. R-34738, In re: Proceeding to establish rules regarding electric utility tariff filings and related review, including site specific rate filings.

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(D)(3) After the effective filing date of any proposed schedule by a public utility which would result in a rate increase, the commission may permit the proposed schedule to be put into effect, in whole or in part, pending its decision on the application for rate increase and subject to protective bond or security approved by the commission.

Staff Recommendation

BECi's request was considered at the Commission's April 16, 2025 Business and Executive Session pursuant to Rule 57 of the Commission's Rules of Practice and Procedure. Staff made no formal recommendation regarding BECi's request for an interim rate increase, however Staff noted that if BECi's request was approved, Staff would recommend the following:

1) BECi be required to file proof of the applicable bond requirements with the Commission;

2) BECi be required to file an updated tariff indicating the interim rate, its terms, and the requested changes to the HLF and HLF ASP tariff provisions, with the Utilities Division within 30 days of the order approving such interim rate; and,

3) BECi cannot begin charging the interim rate until proof of the applicable bond requirements and an updated tariff have been provided to, and approved by Staff.

Commission Consideration

This matter was considered at the Commission's April 16, 2025 Business and Executive Session. On motion of Chairman Francis, seconded by Commissioner Campbell, and unanimously adopted, the Commission voted to exercise its original and primary jurisdiction pursuant to Rule 57.

After discussion, on motion of Chairman Francis, seconded by Vice Chairman Skrmetta, and unanimously adopted, the Commission voted to approve BECi's interim rate increase, subject to refund and applicable bonding requirements. Further, BECi is required to:

1) File proof of the applicable bond requirements with the Commission;

2) File an updated tariff indicating the interim rate, its terms, and the requested changes to the HLF and HLF ASP tariff provisions, with the Utilities Division within 30 days of the order approving such interim rate; and,

3) BECi cannot begin charging the interim rate until proof of the applicable bond requirements and an updated tariff have been provided to, and approved by Staff.

IT IS THEREFORE ORDERED THAT:

1) BECi shall file proof of the applicable bond requirements with the Commission;

2) BECi shall file an updated tariff indicating the interim rate, its terms, and the requested changes to the HLF and HLF ASP tariff provisions, with the Utilities Division within 30 days of the order approving such interim rate; and

3) BECi shall not begin charging the interim rate until proof of the applicable bond requirements and an updated tariff have been provided to, and approved by Staff.

BY ORDER OF THE COMMISSION
BATON ROUGE, LOUISIANA
May 8, 2025



/S/ MIKE FRANCIS
DISTRICT IV
CHAIRMAN MIKE FRANCIS

/S/ ERIC F. SKRMETTA
DISTRICT I
VICE CHAIRMAN ERIC F. SKRMETTA

/S/ FOSTER L. CAMPBELL
DISTRICT V
COMMISSIONER FOSTER L. CAMPBELL

/S/ DAVANTE LEWIS
DISTRICT III
COMMISSIONER DAVANTE LEWIS

/S/ JEAN-PAUL P. COUSSAN
DISTRICT II
COMMISSIONER JEAN-PAUL P. COUSSAN



BRANDON M. FREY
SECRETARY